

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201411399	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 11/02/2014 3:29 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/2/2016	Precinct: 25
Date/Time CV Reported Mon, 11/03/2014 5:00 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Mon, 11/10/2014 11:18 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Mirjan Lolja	05658	936967	025 PCT
2. POF Gloria Byrd	31579	925003	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mirjan Lolja	Force: PO Mirjan Lolja used physical force against § 87(2)(b)	A . Unfounded
B . POM Mirjan Lolja	Abuse: PO Mirjan Lolja entered § 87(2)(b) in Manhattan.	B . Exonerated
C . POF Gloria Byrd	Abuse: PO Gloria Byrd entered § 87(2)(b) Manhattan.	C . Exonerated
D . POF Gloria Byrd	Discourtesy: PO Gloria Byrd spoke rudely to § 87(2)(b)	D . Unsubstantiated

Case Summary

On November 3, 2014, § 87(2)(b) filed the following CCRB complaint via mail (enc. 4a-c). On November 2, 2014, Officer Mirjan Lolja and Officer Gloria Byrd of the 25th command responded to a noise complaint against § 87(2)(b) at § 87(2)(b) in Manhattan. When § 87(2)(b) opened her door, PO Lolja grabbed her by her shirt and forcefully pulled her into the hallway, causing her body to hit a banister (**Allegation A**). After handcuffing § 87(2)(b) the officers then entered § 87(2)(b)'s apartment to get her shoes, coat, keys, and identification (**Allegation B and C**). When § 87(2)(b) explained that she was planning to work at a marathon that day, PO Byrd responded, "Shit," (**Allegation D**). § 87(2)(b) received a summons for § 87(2)(b) (encl. 7e-f).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b). As of December 24, 2014, § 87(2)(b) had not filed a Notice of Claim with the City of New York with regard to this incident (encl. 11d). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3a).
- This is the first CCRB complaint against PO Byrd in her 14 year tenure (encl. 2b).
- PO Lolja has been a member of service for ten years, has had six previous CCRB allegations involving three cases with no substantiated allegations. Four of these allegations have been allegations of force. PO Lolja is currently suspended from the NYPD in regards to an incident which occurred on December 23, 2014, after the filing of this complaint, in which he attacked an MTA employee. (encl. 1a-2a)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Recommendations

Allegation A – PO Mirjan Lolja pulled § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on December 8, 2014. She alleged that PO Lolja grabbed her shirt near her chest and pulled her from her doorway into the hallway, causing her arms and leg to hit the banister across the hallway, approximately four feet from her door. § 87(2)(b) provided photos of a bruise on her left calf and upper left arm, which she claims to have sustained as a result of hitting the banister. § 87(2)(b) sought medical attention at § 87(2)(b). § 87(2)(b) refused to sign HIPAA forms, preventing the CCRB from obtaining her medical records (encl. 6c-m). § 87(2)(g) her original handwritten complaint filed on November 3, 2014, in which she stated that PO Lolja grabbed her "like a criminal." She did not allege any injuries in this initial statement (encl. 4a-c). § 87(2)(g) her telephone statement provided on November 10, 2014, in which she alleged that PO Lolja grabbed her shirt, but stated that her injuries were a result of him grabbing her arms and backing her up against the banister (encl. 6a).

PO Lolja was interviewed at the CCRB on December 16, 2014, and stated that after opening her door, § 87(2)(b) stepped into the hallway. PO Lolja denied grabbing § 87(2)(b) by her shirt and pulling her into the hallway. He did not believe that § 87(2)(b)'s body made contact with the banister. PO Lolja did not know how § 87(2)(b) sustained a bruise on her upper arm or left calf, but suggested that she could have sustained the bruise on her calf when she lifted her leg back into her doorway to prevent her door from closing. § 87(2)(b) confirmed that she had put her leg back into her doorway to hold her door open. PO Byrd was interviewed at the CCRB on January 16, 2015, and confirmed that PO Lolja did not pull § 87(2)(b) by her shirt, but instead, that § 87(2)(b) aggressively advanced toward PO Lolja. (encl. 7a-s)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unfounded**.

Allegation B – PO Gloria Byrd entered § 87(2)(b), in Manhattan.

Allegation C – PO Mirjan Lolja entered § 87(2)(b) in Manhattan.

§ 87(2)(b) alleged that after being handcuffed, PO Byrd and PO Lolja entered her apartment to get her shoes, coat, license, and keys. Although § 87(2)(b) claimed to have asked officers how they could enter her home without a warrant, she confirmed that she stated to the officers, “Come inside. I need to get my stuff.” § 87(2)(b) stated that PO Lolja looked around her living room with his flashlight, but did not open any drawers or go into any other rooms. § 87(2)(b) instructed PO Byrd to retrieve her coat and driver’s license from her bag in the closet.

The officers needed to take § 87(2)(b) to their RMP to do a warrant check and issue her a summons. § 87(2)(b) was barefoot with only jeans and a tank top on. PO Lolja stated that he suggested they enter § 87(2)(b)'s apartment to protect her and her neighbors’ privacy, and to get her shoes, coat, and keys so she would not be locked out. PO Byrd claimed *she* had suggested that they enter the apartment. Neither officer claimed to have asked § 87(2)(b) for permission to enter her apartment, but stated that § 87(2)(b) did not object to the officers’ suggestion of entering the apartment. PO Byrd stated that § 87(2)(b) did not object to the officers being in her apartment. PO Lolja could not recall if § 87(2)(b) asked the officers to leave, but stated that § 87(2)(b) asked him how he could be in her home without a warrant. He explained to § 87(2)(b) that he did not need a warrant, as he was in the apartment only to gather her necessary belongings.

PO Lolja confirmed that he did a quick scan of the living room with his flashlight, which was dimly lit, simply to become aware of his surroundings. The officers quickly gathered § 87(2)(b)'s belongings and left. Both PO Byrd and PO Lolja maintained that they entered § 87(2)(b)'s apartment for no reason other than to get her clothes, keys, and identification, and to protect her privacy. Neither PO Byrd nor PO Lolja searched the apartment.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **Exonerated**.

Allegation D – PO Gloria Byrd spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that when she told PO Byrd she was scheduled to work at a marathon later that morning, PO Byrd responded, “Oh, you’re working at the marathon? Shit.” PO Byrd denied making this statement and confirmed that she did not use any profanity during the incident. Furthermore, she argued that she never liked to use profanity. This became apparent during her CCRB interview, during which she was quite apprehensive to quote § 87(2)(b)’s usage of profanity verbatim. While PO Lolja could not recall if he stated, “Shit,” he was certain that PO Byrd did not say, “Shit”, and agreed that PO Byrd never uses profanity.

§ 87(2)(g)

§ 87(2)(g) _____

_____. Therefore, it is recommended that **Allegation D** be closed as **Unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date